

Needs Analysis Questionnaire for Crypto Startups, DAOs, and network organizations

Assessing the suitability of a Swiss Association as a legal structure for a general-purpose Multisig legal wrapper (Operational Hub)

Section 1: General Information

1.1 What is your organization's or project's name? ____

1.2 Do you already operate under a multi-signature wallet?

- a. Number of wallets ___
- b. What chain is your Multisig(s) on? ___
- c. Describe the ownership structure of the wallet(s) ___

1.3 Does your organization already have one or more legal entities?

- a. What type of entities? ___
- b. In which jurisdictions? ___
- c. Describe what these entities have been used for ___

1.4 Do contributors have individual legal entities?

If yes:

- a. What entity types? ___
- b. In which jurisdictions? ___
- c. Describe what these entities have been used for ___

1.5 Do you currently have contracts or agreements that will be transferred to the new entity?

- a. Describe the nature of these engagements: ____

1.6 What financial tools or platforms does your organization currently rely on? (Offramp, Payment channels, banks, etc.)

- Please describe: ___

1.7 Does your organization have regulatory or compliance concerns?

- If yes, what are they? ____

1.8 Does your organization hold or require any licenses or registrations?

- If yes, What are they? ___

1.9 Does your organization have concrete legal, regulatory, or compliance concerns?

- If yes, please explain. ___

Section 2: Strategic Goals

2.1 Decentralization criteria

Would you describe your project as:

- ☐ A DAO, or a project that intends to bootstrap a DAO
- ☐ A network or a project that intends to bootstrap a network organization
- ☐ A project that primarily works in a decentralized ecosystem or has as DAO as the primary funding source
- ☐ A project that aspires to decentralize operations or governance

-> Yes in at least 1 question: Swiss association as a general-purpose multisig legal wrapper is a suitable instrument. Proceed to the next question.

-> No in all questions→. The value of a Swiss Association as a general-purpose multisig legal wrapper is delivered for DAOs, network organizations, or projects that aim to achieve a considerable degree of decentralization. Swiss Associations are a viable option for more centralized projects, but they have

limitations, such as their incapacity to distribute profits or receive direct investments. Consider traditional legal structures (e.g., LL.C. or equivalent) for your operational needs.

2.2 Non-for-profit purpose

What is the primary purpose of your organization? (Select the option that best matches your goals)

- ☐ Promoting charitable, cultural, educational, or scientific activities
- ☐ Providing services or goods for community benefit without distributing profits to shareholders
- ☐ Developing Open Source Software (OSS) or any other public good
- ☐ Other (please describe): _____

-> Yes, at least one question → Swiss Associations are appropriate vehicles. Proceed to the next question

Swiss Associations are not-for-profit entities, meaning they should mainly be involved in cultural, social, charitable, environmental, educational, or scientific activities. Commercial activities are allowed as long as they are secondary to their primary purpose.

-> No, on all questions: discuss the SNO framework with the client; adapt the entity purpose to fit non-profit criteria; or consider traditional vehicles for meeting operational needs (e.g., LLCs or equivalent).

2.2a Which of these characteristics apply to your organization? (Select all that apply)

Non-Profit Indicators (Positive Factors)

- ☐ Profits, if any, will be entirely reinvested into the mission.
- ☐ The purpose primarily benefits the public.
- ☐ Any generated revenue supports the primary purpose and is secondary.

Commercial Indicators (Negative Factors)

- ☐ The organization aims to distribute profits to members or stakeholders.
- ☐ Membership fees, services, or activities primarily benefit members.
- ☐ Commercial activities dominate over charitable or public-interest work.

Scoring System (In MVP Phase, scoring will be manual)

Based on the selections:

- Non-Profit Likelihood: For every "positive factor" selected, score +20%.
- Commercial Likelihood: For every "negative factor" selected score -20%.

80-100% Positive: *Your organization is likely to be classified as a non-profit under Swiss law.*

50-80% Positive: *Your organization may qualify as a non-profit but should refine its statutes or operational alignment.*

<50% Positive: *Your organization is likely to be considered commercial. Adjustments are needed to align with non-profit criteria.*

Section 3: Operational Needs

3.1 What operational activities will your project need to support?
(Select all that apply)

- ☐ **Procurement & Operations:**
 - ☐ Sign contracts with contributors
 - ☐ Freelance / contractor agreements
 - ☐ Employment agreements
 - ☐ Other _____
 - ☐ Pay contributors
 - ☐ Payment type:
 - ☐ Contractor fee
 - ☐ Salary (employment)
 - ☐ Bonus payment
 - ☐ Payment currency:
 - ☐ Fiat
 - ☐ Crypto
 - ☐ Engage and pay supplier fees and service providers' subscriptions
 - ☐ Describe each supplier payment type and currency
 - ☐ Receive invoices from contributors
 - ☐ Other activities
 - ☐ Please describe: _____

3.2 In what jurisdictions are your core team and contributors located?

- (Open-ended: Provide a list of jurisdictions) ___

-> Swiss Associations have legal personhood and are appropriate for signing contracts, receiving invoices from contributors, and engaging external service providers.

3.3 Do you need a tool to attest to the delivery, acceptance, or value of work produced by your contributors? (e.g.POWt)

- ☐ Yes
- ☐ No

3.4 What type of financial infrastructure does your organization require?

- ☐ Bank account
- ☐ Offramp
- ☐ Payment Channels
- ☐ Credit / Debit Card
- ☐ Other ___

3.5 Do you require redundancy in your payment provider?

- ☐ Yes
- ☐ No

3.6 What is your organization's gross revenue per month? ___

3.7 What are your organization's gross expenses per month? ___

Section 4: Sales & Revenue Generation

**4.1 What commercial activities will your project need to support?
(Select all that apply)**

- ☐ Sign agreements with clients (e.g., Service agreements, Grant agreements, Consultancy agreements, SLAs)
- ☐ Publish Terms of Use, Privacy policies, Cookie policies, or disclaimers for your website.
- ☐ License IP and receive fees or royalties
- ☐ Process payments from clients
- ☐ Other: ___

→ The Swiss Association can be involved in commercial activities with the limitations described in section 2. The Swiss Association is capable of signing commercial agreements.

Section 5: IP management

**5.1 What IP-related activities will your project need to support?
(Select all that apply)**

- ☐ Hold IP assets
 - ☐ OS copyrights
 - ☐ Proprietary copyrights
 - ☐ Trademarks
 - ☐ Patents
 - ☐ IP Addresses
 - ☐ Other ___

5.2 Do your contributors currently assign IP rights to a separate entity?

- ☐ Yes
- ☐ No

5.3 Will your contributors be obliged to assign IP rights to your new entity or a separate vehicle in the future?

☐ Yes

☐ No

5.4 Will your project intend to license IP assets? (granting third parties the right to use the assets while retaining ownership)

☐ Asset: _____

☐ License type _____

→ A Swiss Association is an appropriate vehicle for managing and protecting IP assets. Licensing fees (royalties or fees) are generally considered a commercial activity and subject to the restrictions in section 2.

Section 6: Fundraising

**6.1 What fundraising activities will your project need to support?
(Select all that apply)**

☐ Raise funds from investors

☐ Via tokens / ICOs

☐ Equity (company shares)

☐ Combination Equity + tokens

☐ Sign agreements with investors.

☐ Term sheets

☐ Warrants

☐ SAFT / SAFE

☐ Other

→ Swiss Associations can sign financing agreements with investors, but they are unsuitable for receiving direct investments or issuing security tokens. For that purpose, a separate vehicle is needed.

Section 7: Governance

7.1 Describe the governance framework of your organization

a. How are decisions made within your organization?

Please explain: _____

b. Are there existing bylaws or policies for governance?

☐ Yes

☐ No

i. Are there documents describing these policies? Please upload

7.2 Do you plan to issue governance tokens or enable decentralized decision-making?

☐ Yes

☐ No

-> The Swiss Association can issue and distribute governance tokens

Section x: Summary and Recommendations (In MVP Phase, summary and recommendations will be done manually)

Based on your answers, the Swiss association is:

- **Highly Suitable:** If multiple operational functions (e.g., procurement, IP management, governance) are required.
- **Partially Suitable:** If fundraising involves equity or token issuance.
- **Not Ideal:** If a purely local or single-function entity is sufficient.
